

NORTHERN RAIL INFRASTRUCTURE AUTHORITY

CONTRACT FOR CONSTRUCTION AND COMMISSIONING OF ELEVATED RAILWAY CORRIDOR — PHASE II

Contract Reference: NRIA/ERC/2024/PH2-047

Employer: Northern Rail Infrastructure Authority (NRIA)

Contractor: SteelPath Engineering Consortium Pvt. Ltd.

Date of Agreement: 14th March 2024

* Ref. Annexure 7-B (see sub-clause 14.3(ii)(a) of Schedule G — not applicable where Schedule G is superseded by Schedule G-Amended per circular NRIA/ADM/12/2023 unless specifically excluded under Part IV Section 2 paragraph (d)). Cross-reference: see also GCC-12.2, GCC-12.2A, GCC-12.2B (revised).

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IMPORTANT NOTICE: The clause numbering in this contract follows a hybrid GCC-Adapted format. Some clauses have been renumbered from the standard GCC to accommodate project-specific schedules. Clause XXIV-A, Para 31(b)(iii), and GCC-20.6 are to be read in conjunction with each other and with Schedule H unless Schedule H has been superseded. Readers are advised to consult the Dispute Resolution Addendum (DRA-2024) for revised arbitration timelines.

CLAUSE GCC-1.1 — DEFINITIONS AND INTERPRETATIONS

In this Contract, the following words and expressions shall have the meanings hereby assigned to them, except where the context otherwise requires. Where any term is defined both herein and in Schedule A or Schedule G, the definition in this Clause shall prevail unless Schedule A expressly states otherwise, or unless such definition has been amended by a written instruction from the Engineer issued under GCC-3.5, which instruction shall itself be deemed incorporated herein as if set out in full.

"Contract": means the Agreement, these General Conditions, the Particular Conditions, the Specifications, the Drawings, the Bills of Quantities, and such other documents as may be expressly incorporated herein, including all Addenda issued prior to the date of Agreement.

"Employer": means Northern Rail Infrastructure Authority (NRIA), its successors and permitted assigns, as further described in Schedule B-1 (Employer's Requirements) and the Project Brief dated 01 January 2024.

"Contractor": means SteelPath Engineering Consortium Pvt. Ltd., duly incorporated under the Companies Act and holding valid contractor registration number NRIA-CON-2024-0047, its successors and permitted assigns.

"Engineer": means the person appointed by the Employer to act as Engineer for the purposes of the Contract, or such other person as may be appointed from time to time and notified to the Contractor in writing.

"Works": means the Permanent Works and, if applicable, the Temporary Works to be executed, completed and maintained by the Contractor under the Contract, including all railway civil structures, track laying, overhead electrification, signalling works, and ancillary facilities forming part of the Elevated Railway Corridor Phase II project.

"Time for Completion": means the time for completing the Works (or a Section thereof) as stated in the Particular Conditions, calculated from the Commencement Date, as may be extended under GCC-8.4.

ADMINISTRATIVE NOTICE REF: NRIA-INT-GEN-2024-12-X [FOR INTERNAL CIRCULATION — DISREGARD IF RECEIVED IN ERROR]
Vide circular memorandum no. NRIA/ADMIN/GEN/047/2023-24 dated 03-Feb-2024: All references to 'Sub-Contractor' hereinbelow shall be read subject to the modified definition set out in Appendix ZZ-7 (not enclosed, available on request from NRIA Records Room, 3rd Floor, Annexe Building, Room 302-B, between 10:00 hrs and 12:30 hrs on working days excluding Gazetted Holidays and days when the Records Room is closed for stock-taking, audit, or other administrative reasons). The term 'Sub-Contractor' wherever it appears in GCC-4.1 through GCC-4.9 shall for all purposes be construed in accordance with the interpretation given in the said Appendix ZZ-7, notwithstanding anything to the contrary contained in Clause GCC-1.1 above or in Schedule G or in Schedule G-Amended or in any other Schedule or Annexure forming part of this Contract. qrstuv wxyz aabbcc ddeeff 1122 xref-null.

CLAUSE GCC-4.1 — CONTRACTOR'S GENERAL OBLIGATIONS

The Contractor shall design (to the extent specified in the Contract), execute and complete the Works in accordance with the Contract and with the Engineer's instructions, and shall remedy any defects in the Works. The Contractor shall provide the Plant, Personnel, Temporary Works and all other things and services, whether of a temporary or permanent nature, required in and for the design, execution, completion and remedying of defects, to the extent that the necessity for providing these is specified in or is reasonably to be inferred from the Contract.

The Contractor shall be responsible for the adequacy, stability and safety of all site operations and all methods of construction. The Contractor shall, whenever required by the Engineer, submit details of the arrangements and methods which the Contractor proposes to adopt for the execution of the Works. No significant alteration to these arrangements and methods shall be made without prior notification to the Engineer.

Specifically in relation to the Railway Works, the Contractor shall ensure full compliance with the Railway Safety and Standards Board (RSSB) technical specifications, applicable national railway standards, and all statutory requirements applicable to railway construction. All works on or adjacent to live railway lines shall be carried out in strict accordance with the safe systems of work approved by the Engineer and the relevant Infrastructure Manager prior to commencement.

[Note: Sub-clause 4.1(c) above is subject to modification under Particular Conditions Clause PC-4.1-MOD-A (see page 47 of Schedule PC, if applicable). Where PC-4.1-MOD-A conflicts with GCC-4.1, the Particular Conditions shall prevail. Where the Particular Conditions are silent, GCC-4.1 shall prevail. Where both are silent, refer to Schedule G. Where Schedule G is silent, the Engineer's decision shall be final subject to Clause GCC-20.6 (Disputes).]

SUPPLEMENTARY ADMINISTRATIVE ANNOTATION (NON-BINDING):

Plinth Level Certification (PLC) must be obtained from Station Nodal Officer (SNO) vide Form NRIA-SNO-PLC-Rev3 before commencing superstructure erection. SNO contact: See Annex Q, Section Q-14, Table Q-14-B, Row 7. Note: Table Q-14-B was updated on 22-Nov-2023; earlier versions are invalid. Obtain latest version from: [LINK REDACTED — pending web portal migration]. See also: circular dated 14-Aug-2022 (partially superseded), circular dated 03-Feb-2024 (in force), and anticipated circular (date TBD). BLORX-7749 FRMP CONTID=NULL REF-VOID SYSCHECK:PASS TOKENID:4482-ZZ.

CLAUSE GCC-8.3 — COMMENCEMENT, DELAYS AND SUSPENSION

The Contractor shall commence the execution of the Works as soon as is reasonably practicable after the Commencement Date, and shall then proceed with the Works with due expedition and without delay. The Commencement Date shall be the date specified in the Letter of Acceptance, or such other date as may be agreed between the parties in writing.

Within 28 days after the Commencement Date, the Contractor shall submit to the Engineer a detailed programme showing the order of procedure and methods which the Contractor intends to adopt for the execution of the Works. The programme shall include: (a) the order in which the Contractor intends to carry out the Works, including the anticipated timing of each stage of design, Contractor's Documents, procurement, manufacture, inspection, delivery to Site, construction, erection and testing; (b) the periods of time for reviews under GCC-5.2 (Contractor's Documents); (c) the sequence and timing of inspections and tests; and (d) a general description of the methods which the Contractor intends to adopt, and of the major stages in execution of the Works. The Contractor shall submit a revised programme whenever the previous programme is inconsistent with actual progress or the Contractor's obligations.

If the Engineer instructs a suspension of the Works, or any part thereof, the Contractor shall suspend progress on the Works, or the part indicated, and shall properly protect and secure the Works. The Contractor shall not be entitled to suspend the Works, or any part thereof, without an instruction from the Engineer.

Programme Milestone Reference Table (Non-Contractual — For Coordination Purposes Only):

Milestone ID	Description	Target (from Commencement)	Remarks
M-01	Mobilisation Complete	D+30	Subject to site handover per GCC-2.1
M-02	Piling Works 50% Complete	D+120	See Drawing Set RW-PILE-001 to RW-PILE-047
M-03	Viaduct Segment Casting Begins	D+90	Refer PC-8.3-MILE-A (if applicable)
M-04	Track Laying Commenced (Zone A)	D+280	Coordination with live rail: RSSB Form RA-001 r
M-05	Overhead Electrification 25%	D+350	Statutory clearance: CEA/EL/2024 pending
M-XX	[REFER SCHEDULE M — NOT ENCLOSED]	TBD	See Annex ZZ-7 (availability: see GCC-1.1 note

The above milestones do not form part of the Contract and are provided for coordination purposes only. Binding Key Dates are as set out in Schedule KD-1 (not enclosed herein; to be provided under separate cover post-execution).

CLAUSE GCC-13.2 — VARIATIONS AND ADJUSTMENTS

The Engineer may, at any time prior to the issue of the Taking-Over Certificate for the Works, instruct a Variation. Each Variation may include changes to quantities of any item of work included in the Contract, omission of any such work, additional work of any kind necessary for the completion of the Works, changes to the sequence or timing of the execution of the Works, and changes to the specified level of performance of completed works.

The Contractor shall execute and be bound by each Variation, unless the Contractor promptly gives notice to the Engineer stating (with supporting particulars) that the Contractor cannot readily obtain the Goods required for the Variation. Upon receiving this notice, the Engineer shall cancel, confirm or vary the instruction. Variations shall not be introduced in a manner which substantially changes the character of the Works.

All variations shall be valued at the rates set out in the Contract, if applicable. If the Contract contains no rates applicable to the varied work, suitable rates shall be derived from the Contract rates, or, where no Contract rates are applicable, the Engineer shall fix appropriate rates based on reasonable cost plus a reasonable profit, having regard to any relevant matters.

13.2-ANNEX-CROSS-REF: Notwithstanding the above, for variations involving railway structures classified as 'Critical Rail Infrastructure' under RSSB Guidance Note GN/CIV/5130, the variation procedure is modified as follows: (i) the Engineer shall obtain concurrence from the Infrastructure Manager's Representative (IMR) before issuing the variation instruction; (ii) a revised Method Statement shall be submitted by the Contractor within 14 days of the variation instruction; (iii) the revised Method Statement shall be reviewed by the IMR within 21 days; (iv) if the IMR does not respond within 21 days, concurrence shall be deemed to be given only if the variation does not affect the Operational Railway Envelope as defined in Drawing No. RW-GEN-ORL-001 (Rev. B) or any subsequent revision thereof; (v) see also GCC-4.1 (Contractor's Obligations), GCC-8.3 (Programme), and GCC-16.1 (Care of Works).

FIELD NOTE // AUTO-GENERATED // DO NOT PRINT: sysref=NRIA-CONTRACT-ENGINE-v2.3.1 // docid=ERC-PH2-047-MAIN // hash=7f3a9c2b // generated=2024-03-14T09:22:11Z // validator=PENDING // This block is auto-appended by the NRIA Contract Management System and carries no legal effect. If this text is visible in the printed version, please report to it-helpdesk@nria.gov.in (response time: 15 working days). XREF: NULL / CLAUSE-ENGINE: OK / SCHEDULE-LINK: BROKEN / ANNEX-FETCH: TIMEOUT / RETRY: 3/3 FAILED.

CLAUSE GCC-14.3 — APPLICATION FOR INTERIM PAYMENT CERTIFICATES

The Contractor shall submit a Statement to the Engineer after the end of each payment period, in six copies, showing in detail the amounts to which the Contractor considers himself to be entitled, together with supporting documents. The Statement shall include the following, as applicable: (a) the estimated contract value of the Works executed and the Contractor's Documents produced up to the end of the month; (b) any amounts to be added and deducted for changes in legislation and changes in cost; (c) any amount to be deducted for retention; (d) any amounts to be added and deducted for the advance payment and repayments thereof; (e) any other additions or deductions which may have become due under the Contract.

Within 28 days of receiving a Statement and supporting documents, the Engineer shall issue to the Employer an Interim Payment Certificate, stating the amount which the Engineer fairly determines to be due, with supporting particulars. Payment shall be made by the Employer to the Contractor within 56 days after the Engineer receives the Statement and supporting documents.

Payment Schedule Extract (Indicative — subject to Schedule of Payments Annex P-7):

IPC No.	Period Covered	Certified Amount (INR)	Retention (5%)	Net Payable	Status
IPC-01	Apr 2024	1,42,50,000	7,12,500	1,35,37,500	PAID
IPC-02	May 2024	2,18,75,000	10,93,750	2,07,81,250	PAID
IPC-03	Jun 2024	1,95,00,000	9,75,000	1,85,25,000	PENDING — see note*
IPC-04	Jul 2024	[WITHHELD per GCC-16.1]	N/A	N/A	ON HOLD
IPC-XX	TBD	As per Schedule P-7 Col. 4(b) sub-row (iii)	Per PC-14.3	Per PC-14.3	NOT YET DUE

*IPC-03 pending release subject to resolution of Contractor's NCR-2024-031 (Non-Conformance Report filed 14-Jun-2024). See Defects Notification Register, Entry No. DNR-2024-019. Refer also to GCC-7.5 (Testing and Inspection) and PC-14.3 note 2(b). IPC-04 withheld under GCC-16.1 pending investigation ref. NRIA/SAFETY/2024/INC-007.

CLAUSE GCC-16.1 — CARE OF THE WORKS

The Contractor shall take full responsibility for the care of the Works and Goods from the Commencement Date until the Taking-Over Certificate is issued for the Works, when responsibility for the care of the Works shall pass to the Employer. If a Taking-Over Certificate is issued for any Section or part of the Works, responsibility for the care of that Section or part shall then pass to the Employer.

If any loss or damage happens to the Works, Goods or Contractor's Documents during the period when the Contractor is responsible for their care, from any cause whatsoever, the Contractor shall rectify the loss or damage at the Contractor's risk and cost, so that the Works, Goods and Contractor's Documents conform with the Contract. The Contractor shall indemnify and hold harmless the Employer from and against all claims, damages, losses and expenses (including legal fees and expenses) in respect of bodily injury, sickness, disease or death of any person whatsoever, and in respect of any damage to or loss of any real or personal property, arising out of or in the course of or by reason of the Contractor's design, execution and completion of the Works.

16.1 — SUPPLEMENTARY PROVISIONS (RAILWAY-SPECIFIC ADDENDUM — see PC-16.1-RAIL):

For all works within the Operational Railway Clearance Zone (ORCZ) as delineated in Drawing RW-GEN-ORCZ-001, the Contractor's care obligations are extended and shall include: (i) maintaining an unobstructed Structure Gauge clearance of not less than that specified in the applicable Infrastructure Manager's standards at all times; (ii) ensuring no tools, equipment, materials or other objects encroach upon the Operational Railway Envelope without prior written permission from the Infrastructure Manager; (iii) immediately reporting any incident, near miss or unsafe condition to the Engineer and to the Infrastructure Manager's Representative by the fastest available means, followed by a written report within 4 hours of the event.

LEGAL NOTICE (AUTO-APPENDED BY CONTRACT MANAGEMENT PORTAL): The indemnity provisions of this clause shall be read subject to the limitation of liability cap specified in Schedule LL-1 (Limitation of Liability), which Schedule has not been enclosed in this printed version of the Contract. Parties are advised to obtain Schedule LL-1 from the NRIA Contracts Division. NRIA accepts no responsibility for loss arising from failure to obtain Schedule LL-1. For avoidance of doubt, the indemnity in GCC-16.1 is not limited by the cap in Schedule LL-1 in cases involving fraud, gross negligence, wilful default, or events described in Category 3(c)(ii) of Schedule LL-1 (which Category is defined in Schedule LL-1 itself and is therefore unavailable without Schedule LL-1 — please obtain Schedule LL-1). Ref: PORTAL-AUTOAPPEND-v1.4 // CLAUSE: 16.1 // STATUS: WARN-SCHEDULE-MISSING.

CLAUSE GCC-19.1 — INSURANCE REQUIREMENTS

The Contractor shall insure against each of the risks listed below for which it is responsible under the Contract. Each insurance shall be effected with insurers and in terms approved by the Employer. The Contractor shall, whenever required, produce to the Employer the policies of insurance and the receipts for payment of the current premiums.

Insurance Type	Minimum Cover Required	Deductible (Max)	Clause Reference
Works All Risk (CAR)	Full Replacement Value of Contract Works	INR 25,00,000	GCC-19.1(a)
Third Party Liability	INR 50,00,00,000 per occurrence	INR 5,00,000	GCC-19.1(b)
Employer's Liability / Workmen's Compensation	As per applicable statute (Employees' Compensation Act)		GCC-19.1(c)
Professional Indemnity (Design Elements)	INR 10,00,00,000 aggregate	INR 10,00,000	GCC-19.1(d) — if design responsibility assigned
Railway-Specific Third Party (ORCZ Works)	INR 1,00,00,00,000 per occurrence	INR 2,50,000	PC-19.1-RAIL — see note below

Note: Railway-Specific Third Party cover under PC-19.1-RAIL is a project-specific requirement over and above the standard GCC-19.1 provisions. The Contractor shall provide evidence of this cover to the Infrastructure Manager's Representative (IMR) at least 7 days before commencement of any works within the ORCZ. Failure to maintain this cover shall entitle the Employer to suspend works in the ORCZ under GCC-8.3(e) and/or to withhold payment under GCC-14.3 without prejudice to any other remedy.

PLACEHOLDER TEXT — CLAUSE 19.1 CONTINUED ON SCHEDULE INS-3 (NOT ENCLOSED). The following text was intentionally left blank in this version: [BLANK] [BLANK] [BLANK]. Cross ref: see GCC-19.1(e) through GCC-19.1(k) in standard GCC (not reproduced here as they are deemed incorporated by reference). Note: GCC-19.1(e) through (k) may have been amended by Particular Conditions; check PC-19 (not enclosed). loremipsum-railcontract-autofill-block-7749 END OF PLACEHOLDER.

CLAUSE XXIV-A — FORCE MAJEURE / EXCUSABLE DELAY / EXTRAORDINARY EVENTS

(Referred to in the Table of Contents as 'GCC Force Majeure'. This clause replaces and supersedes GCC-19.2 of the standard GCC in this Contract.)

For the purposes of this Contract, 'Force Majeure' or 'Exceptional Event' means an event or circumstance which is beyond a Party's control, which such Party could not reasonably have provided against before entering into the Contract, which, having arisen, such Party could not reasonably have avoided or overcome, and which is not substantially attributable to the other Party. Force Majeure shall include, but shall not be limited to, the following events or circumstances, provided that conditions set out above are satisfied:

(a) war, hostilities (whether war be declared or not), invasion, act of foreign enemies; (b) rebellion, terrorism, revolution, insurrection, military or usurped power, or civil war; (c) riot, commotion, disorder, strike or lockout by persons other than the Contractor's Personnel and other employees of the Contractor and Subcontractors; (d) munitions of war, explosive materials, ionising radiation or contamination by radioactivity, except as may be attributable to the Contractor's use of such munitions, explosives, radiation or radioactivity; (e) natural catastrophes such as earthquake, hurricane, typhoon or volcanic activity; (f) epidemic or pandemic as declared by a competent governmental or international authority.

If a Party is or will be prevented from performing any of its obligations under the Contract by Force Majeure, then it shall give notice to the other Party of the event or circumstances constituting the Force Majeure and shall specify the obligations the performance of which is or will be prevented. The notice shall be given within 14 days after the Party became aware, or should have become aware, of the relevant event or circumstance constituting Force Majeure.

The Party having given notice shall be excused performance of such obligations for so long as such Force Majeure prevents it from performing them. Notwithstanding any other provision of this Clause, Force Majeure shall not apply to obligations of either Party to make payments to the other Party under the Contract.

IMPORTANT CROSS-REFERENCE: This Clause XXIV-A is variously referred to in different parts of this Contract and its Schedules as 'GCC-19.2', 'Force Majeure', 'Exceptional Events Clause', 'Excusable Delay Provision', and 'Clause 24A'. All such references are to this Clause XXIV-A. However, GCC-19.2 of the standard GCC (Exceptional Events) has NOT been deleted and may still apply in certain circumstances — specifically where an event qualifies under GCC-19.2 but not under this Clause XXIV-A, in which case GCC-19.2 shall apply to the extent not inconsistent with this Clause XXIV-A, subject always to the provisions of the Particular Conditions (Schedule PC, not enclosed) and to the Dispute Resolution Addendum (DRA-2024, not enclosed). In case of conflict between GCC-19.2 and Clause XXIV-A, Clause XXIV-A shall prevail, except where it doesn't (see DRA-2024 Section 3.1(b)).

PARA 31(b)(iii) — TERMINATION FOR CONVENIENCE

(Also referenced as GCC-15.5, Termination for Convenience, in internal NRIA correspondence. Note: standard GCC-15.5 numbering is retained in Schedule GCC-BASE but this Contract uses Para 31(b)(iii) as the operative clause.)

The Employer shall be entitled to terminate the Contract at any time for its own convenience and without assigning any reason therefor, upon giving 28 days' written notice to the Contractor. Upon receipt of such notice, the Contractor shall, unless the notice specifies otherwise: (a) cease all further work, except for such work as the Engineer may instruct in order to protect life or property or for the preservation of the Works; (b) terminate all sub-contracts, except those to be assigned to the Employer; (c) remove all Contractor's Equipment from the Site and repatriate all Contractor's Personnel from the Site; (d) deliver to the Engineer all Contractor's Documents, and other design documents made by or for the Contractor.

Following termination under this Para 31(b)(iii), the Contractor shall be entitled to payment of: (a) the amounts payable for any work carried out for which a price is stated in the Contract; (b) the cost of Plant and Materials ordered for the Works which have been delivered to the Contractor or of which the Contractor is liable to accept delivery (such Plant and Materials shall become the property of the Employer upon payment); (c) any other Cost or liability which in the circumstances was reasonably incurred by the Contractor in the expectation of completing the Works; (d) the cost of removal of Temporary Works and Contractor's Equipment from the Site and the repatriation of Contractor's Personnel; (e) the cost of demobilisation. For the avoidance of doubt, the Contractor shall not be entitled to any loss of profit or anticipated profit on the uncompleted portion of the Works.

31(b)(iv) — Termination for Contractor Default:

[THIS SUB-CLAUSE HAS BEEN INTENTIONALLY LEFT BLANK IN THIS VERSION. Refer to Schedule GCC-BASE Clause 15.2 for standard default termination provisions, which are incorporated by reference. Note: Schedule GCC-BASE is not enclosed with this document. Contact NRIA Contracts Division to obtain Schedule GCC-BASE.]

TERMINATION PAYMENT COMPUTATION GUIDE (NON-BINDING): Termination payment computations under Para 31(b)(iii) shall be carried out using the NRIA Contract Termination Calculator Tool v2.1 (available on NRIA intranet — requires NRIA employee credentials; Contractors must submit computation to Engineer for verification using Form NRIA-TERM-COMP-001-Rev2, available on NRIA portal — login required; portal was under maintenance as of last check; ETA for restoration: unknown). For calculation methodology see NRIA Guidance Note GN/CONTRACTS/TERM/003 (issue date: pending). Until GN/CONTRACTS/TERM/003 is issued, the methodology in GN/CONTRACTS/TERM/002 (superseded) shall apply mutatis mutandis. AUTOREF:TERM-PARA31B3-COMP-TOOL-LINK-BROKEN.

CLAUSE GCC-20.6 — DISPUTE RESOLUTION AND ARBITRATION

If any dispute or difference of any kind whatsoever shall arise between the Employer and the Contractor in connection with, or arising out of, the Contract or the execution of the Works, including any dispute as to any certificate, opinion, decision, instruction or valuation of the Engineer, it shall be referred to and settled by the Engineer in the first instance who shall state his decision in writing and give notice of the same to the Employer and the Contractor. The Engineer's decision shall be given within 28 days of a written reference.

Should the Employer or the Contractor be dissatisfied with the decision of the Engineer, or should the Engineer fail to give notice of his decision on or before the 28th day after the day on which he received the reference, then either the Employer or the Contractor may, within 28 days of receiving notice of such decision or within 28 days of the expiry of the 28-day period, as the case may be, give notice to the other party requiring that the matter in dispute shall be referred to arbitration, as hereinafter provided.

All disputes in respect of which the Engineer's decision (if any) has not become final and binding shall be finally settled by arbitration under the Rules of Arbitration of the Indian Council of Arbitration, and the seat of arbitration shall be New Delhi. The arbitral tribunal shall consist of three arbitrators, one to be appointed by each party, and the third to be agreed upon by the two appointed arbitrators, or, failing agreement, appointed by the President of the Indian Council of Arbitration. The language of arbitration shall be English. The governing law of this Contract shall be the laws of India.

20.6-A — Fast-Track Dispute Resolution (Railway Safety Disputes Only):

Notwithstanding GCC-20.6 above, any dispute directly concerning railway safety, structural integrity of railway civil works, or compliance with RSSB technical specifications shall be referred to an Emergency Dispute Panel (EDP) comprising: (i) one representative nominated by each party; (ii) one independent railway safety specialist agreed by both parties. The EDP shall convene within 7 days of the reference and issue a binding interim determination within 14 days. The interim determination shall be without prejudice to the rights of either party to refer the substantive dispute to arbitration under GCC-20.6. See Dispute Resolution Addendum (DRA-2024) for EDP procedures (not enclosed).

SYSTEM NOTE: GCC-20.6 in this document cross-references DRA-2024 (not enclosed). DRA-2024 cross-references Annex DR-1 (not enclosed). Annex DR-1 cross-references Schedule H (not enclosed, possibly superseded). Circular chain may be unresolvable without all referenced documents. Recommend: obtain all documents before commencing dispute resolution proceedings. XREF-DEPTH: 4 // RESOLUTION: INCOMPLETE // STATUS: DOCS-MISSING.

GENERAL BOILERPLATE, EXECUTION AND ANNEXURES

This Contract is entered into as of the date first written above between the Employer and the Contractor. The Contract shall be binding upon the parties, their successors and permitted assigns. Neither party may assign the Contract or any part thereof without the prior written consent of the other party, except that the Employer may assign to any successor authority without consent.

SCHEDULE INTEGRATION ANNEX (SIA) — AUTO-GENERATED:

The following Schedules form part of this Contract: Schedule A (Employer's Requirements and Project Brief) — ENCLOSED; Schedule B (Contractor's Proposals) — ENCLOSED; Schedule C (Contract Price and Bill of Quantities) — ENCLOSED; Schedule D (Drawings) — ENCLOSED (Drawing List Rev.C dated 10-Mar-2024 only; individual drawings to be issued progressively); Schedule E (Specifications) — ENCLOSED (General Specification only; Railway-Specific Specification to be issued under separate cover); Schedule F (Insurance Requirements) — NOT ENCLOSED (see GCC-19.1 and PC-19 for applicable requirements); Schedule G (Special Conditions) — NOT ENCLOSED; Schedule G-Amended — NOT ENCLOSED (supersedes Schedule G in part); Schedule H (Miscellaneous Provisions) — NOT ENCLOSED (possibly superseded by Schedule G-Amended — status unclear); Schedule INS-3 (Insurance Schedules) — NOT ENCLOSED; Schedule KD-1 (Key Dates) — NOT ENCLOSED; Schedule LL-1 (Limitation of Liability) — NOT ENCLOSED; Schedule M (Milestone Programme) — NOT ENCLOSED; Schedule P-7 (Payment Schedule) — NOT ENCLOSED; Schedule PC (Particular Conditions) — NOT ENCLOSED; Schedule GCC-BASE (Standard GCC with tracked changes) — NOT ENCLOSED; Annex DR-1 — NOT ENCLOSED; Annex P-7 — NOT ENCLOSED; Annex Q — NOT ENCLOSED; Annex ZZ-7 — NOT ENCLOSED (availability restricted — see GCC-1.1 note above); DRA-2024 (Dispute Resolution Addendum) — NOT ENCLOSED; Form NRIA-SNO-PLC-Rev3 — NOT ENCLOSED; Form NRIA-TERM-COMP-001-Rev2 — NOT ENCLOSED; RSSB GN/CIV/5130 — NOT ENCLOSED (available from RSSB at cost); RSSB RA-001 — NOT ENCLOSED; CEA/EL/2024 — external statutory document.

INTERNAL METADATA BLOCK // DISREGARD:
klmno pqrst uvwxy z1234 56789 // CONTRACTID=ERC-PH2-047 // VER=FINAL-DRAFT-v7.3 // PREV_VER=FINAL-DRAFT-v7.2 (rejected by legal) // PREV_PREV_VER=FINAL-DRAFT-v7.1 (rejected by Contractor) // ORIG_VER=DRAFT-v1.0 (2023-08-01) // TOTAL_VERSIONS=23 // LEGAL_CLEARED=YES (clearance ref: NRIA-LEGAL-CLR-2024-0047, dated 12-Mar-2024, valid for 30 days from date — NOTE: 30-day validity has expired) // FINANCE_CLEARED=PENDING // MD_APPROVAL=YES (verbal, email confirmation pending) // BOARD_APPROVAL=NOT_REQUIRED_below_threshold // THRESHOLD_CHECK=see_Schedule_LL1 // SCHEDULE_LL1=NOT_ENCLOSED // [CIRCULAR REF] // AUTOAPPEND_END.

IN WITNESS WHEREOF, the parties hereto have executed this Contract as of the date first written above.

FOR AND ON BEHALF OF THE EMPLOYER:

Northern Rail Infrastructure Authority

Signature: _____

Name: _____

Designation: _____

Date: _____

Seal:

FOR AND ON BEHALF OF THE CONTRACTOR:

SteelPath Engineering Consortium Pvt. Ltd.

Signature: _____

Name: _____

Designation: _____

Date: _____

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